

25TRCV00017 25TRCV00017

County: los-angeles

Division: Civil Law and Motion

Department: 5

Hearing date: 2026-07-31

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Case Number: 25TRCV00017 Hearing Date: July 31, 2026 Dept: 5

Superior Court of California

County of Los Angeles – SOUTHWEST District

Department

5

MARISELA G. VARGAS

;

Plaintiff,

vs.

CITY OF INGLEWOOD

, et al.;

Defendants.

Case

No.:

25TRCV00017

Hearing

Date:

July
31, 2026

Time:

8:30 a.m.

[tentative]

Order RE:

(1)

PLAINTIFF MARISELA G. VARGAS' MOTION TO
CONSOLIDATE ACTIONS

MOVING PARTY: Plaintiff, Marisela G. Vargas

RESPONDING PARTY: Defendant, County of Los Angeles

(1) Plaintiff

Marisela G. Vargas' Motion to Consolidate Actions is DENIED pursuant to Code of
Civil Procedure section 1048 and California Rules of Court, rule 3.350(a)(1)(C).

The Court considers the moving
papers filed on June 26, 2026, and the opposition brief filed on July 15,
2026. To date, no reply brief has been
filed.

BACKGROUND

Factual Background

On January 3, 2025, plaintiff Marisela
G. Vargas ("Plaintiff") filed the Complaint against defendants City of
Inglewood, County of Los Angeles, State of California, Jimmy D's Inc., and DOES
1 through 100. The Complaint includes
the following causes of action: (1) Dangerous Condition of Public Property; (2)
Negligence; and (3) Premises Liability.

On March 12, 2025, Plaintiff dismissed City of Inglewood without

prejudice.

On May 23, 2025, Jimmy D's Inc. filed the Cross-Complaint against cross-defendants City of Inglewood, County of Los Angeles, State of California, and ROES 1 through 20. The Cross-Complaint includes the following causes of action: (1) Equitable Indemnity; (2) Partial Equitable Indemnity; (3) Contribution and Equitable Apportionment; and (4) Declaratory Relief.

On June 6, 2025, Jimmy D's Inc. dismissed City of Inglewood without prejudice.

On September 2, 2025, Jimmy D's Inc. dismissed State of California without prejudice.

On September 4, 2025, Plaintiff dismissed State of California with prejudice.

On February 18, 2026, Plaintiff dismissed Jimmy D's Inc. without prejudice.

On March 4, 2026, Jimmy D's Inc. dismissed County of Los Angeles without prejudice.

On March 5, 2026, County of Los Angeles filed a Notice of Related Case, notifying the Court that Raquel Garcia v. County of Los Angeles, et al., Case No. 25TRCV00220, and Ruben Sanchez v. County of Los Angeles, et al., Case No. 25TRCV00999, are related cases.

On March 25, 2026, Jimmy D's Inc. dismissed the Cross-Complaint without prejudice.

The plaintiffs in Case Nos. 25TRCV00017, 25TRCV00220, and 25TRCV00999 have drafted a Joint Stipulation to Consolidate Related Cases. (Declaration of Mohammed Bashraheel ("Bashraheel Decl."), ¶¶ 5-6, Exh. A.)

LEGAL STANDARD

California Rules of Court, rule 3.350(a) states:

(1) A notice of motion to consolidate must:

(A) List all named parties in each case, the names of those who have appeared, and the names of their respective attorneys of record;

(B) Contain the captions of all the cases sought to be consolidated, with the lowest-numbered case shown first; and

(C) Be filed in each case sought to be consolidated.

(2) The motion to consolidate:

(A) Is deemed a single motion for the purpose of determining the appropriate filing fee, but memorandums, declarations, and other supporting papers must be filed only in the lowest-numbered case;

(B) Must be served on all attorneys of record and all non-represented parties in all of the cases sought to be consolidated; and

(C) Must have a proof of service filed as part of the motion.

(Cal. Rules of Court, rule 3.350(a).)

Additionally, Code of Civil

Procedure section 1048, subdivision (a), states: "When actions involving a common question of law or fact are pending before the court, it may order a joint hearing or trial of any or all the matters in issue in the actions; it may order all the actions consolidated and it may make such orders concerning proceedings therein as may tend to avoid unnecessary costs or delay."

The decision to grant or deny

a motion to consolidate is within the trial court's sound discretion and will only be reversed if there is a clear showing of abuse of that discretion. (See *Fellner v. Steinbaum* (1955) 132 Cal.App.2d 509, 511.)

DISCUSSION

Plaintiff moves to consolidate this action with Case Nos. 25TRCV00220 and 25TRCV00999 on the grounds that "the actions arise out of the same or substantially similar allegations (i.e. dangerous condition of a public curb), involve common questions of law or fact, and thereby consolidation will avoid unnecessary costs or delay." (Motion, p. 4:7-9.)

In accordance with California Rules of Court, rule 3.350(a)(1), Plaintiff has: (A) identified all named parties and their respective attorneys of record in both cases; and (B) provided the captions of both cases to be consolidated, listing the lowest-numbered case first. (Cal. Rules of Court, rule 3.350(a)(1)(A)-(B).)

Furthermore, in accordance with California Rules of Court, rule 3.350(a)(2), Plaintiff's motion complied with the following conditions: (A) the memorandums, declarations, and other supporting documents were filed in the lowest-numbered case; (B) the motion has been served on all attorneys of record; and (C) a proof of service is attached and has been filed as part of the motion. (Cal. Rules of Court, rule 3.350(a)(2)(A)-(C).)

Plaintiff maintains that the incidents in question occurred at the "same exact unmarked dangerous curb" and states that "[t]he maintenance and condition of the curb was identical in all three instances." (Motion, p. 5:4-6.) Furthermore, Plaintiff claims that "[t]he responsible parties are identical in all three" incidents and emphasizes that "the evidence that would be required to support and prove their allegations of negligence and a dangerous condition of Public Property are identical for all three [p]laintiffs." (Motion, p. 5:6-8.) Plaintiff posits that the only variance lies in the damages asserted by each plaintiff, given

the distinct injuries, medical histories, and pain and suffering involved. (Motion, p. 5:8-11.)

However, the County of Los

Angeles aptly notes that “the circumstances surrounding each alleged incident are different, including the date, [p]laintiff involved, manner in which the incident allegedly occurred, and the specific condition encountered.” (Opp., p. 5:2-3.) These distinctions necessitate individualized

determinations regarding liability, encompassing considerations such as “whether a dangerous condition existed, whether the condition caused the alleged injury, whether the County had notice or sufficient time to respond, and whether the Plaintiff exercised reasonable care all require individualized determinations.” (Opp., p. 5:6-8.) Such differences will also result in “individualized discovery concerning each Plaintiff’s alleged incident, injuries, damages, and liability issues.” (Opp., p. 6:20-21.)

Moreover, the Court observes

that consolidating these cases may prejudice the County of Los Angeles by potentially confusing the jury. The

County of Los Angeles articulates that “[p]resenting three alleged incidents involving the same general location to a single jury creates a significant risk that the jury may improperly infer that, because multiple individuals allegedly experienced incidents at the same location, the condition must necessarily have been dangerous or that the County must necessarily be liable.” (Opp., p. 5:16-19.) Furthermore, consolidation could “create a risk that evidence concerning one [p]laintiff’s claim would improperly influence the evaluation of another [p]laintiff’s claim.” (Opp., p.5:27-28.)

Moreover, Plaintiff failed to

file the notice of this motion under Case Nos. 25TRCV00220 and 25TRCV00999. (Cal. Rules of Court, rule 3.350(a)(1)(C).)

Accordingly, Plaintiff’s motion is DENIED.

ORDERS

1) Plaintiff

Marisela G. Vargas’ Motion to Consolidate Actions is DENIED.

2) Plaintiff

is ordered to provide notice of this Court’s ruling in Case Nos. 25TRCV00017, 25TRCV00220,

and 25TRCV00999.

IT IS SO ORDERED.

DATED: July 31, 2026

Tamara
Hall

Judge
of the Superior Court